

SENATE No. 1456

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to voting on regional planning board proposed regional agreements.

PETITION OF:

NAME:

Paul W. Mark

DISTRICT/ADDRESS:

*Berkshire, Hampden, Franklin and
Hampshire*

SENATE No. 1456

By Mr. Mark, a petition (accompanied by bill, Senate, No. 1456) of Paul W. Mark for legislation relative to voting on proposed regional school districts. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to voting on regional planning board proposed regional agreements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 15 of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby by amended by striking section 15 in its entirety and replacing it with
3 the following new section 15:-

4 Section 15. The selectmen or council of each of the several towns shall, upon receipt of
5 the recommendation that a regional school district should be formed and of a proposed
6 agreement therefor submitted in accordance with the provisions of sections fourteen to fourteen
7 B, inclusive, or otherwise in the form and with the approval required by said sections, cause to be
8 presented the question of accepting the provisions of sections sixteen to sixteen I, inclusive, and
9 the proposed agreement or agreements. Said question shall be determined, in a town having an
10 open town meeting, by vote with printed ballots at an annual or special town meeting to be held
11 in either case within thirty days after receipt of such recommendation by the selectmen or at an
12 annual or special town election to be held in either case not less than thirty-five nor more than

13 fifty days after receipt of such recommendation. and, in a town having a representative town
14 meeting or council, at an annual or special town election to be held in either case not less than
15 thirty-five nor more than fifty days after receipt of such recommendation. The article in the
16 warrant for such annual or special town meeting or election and the question on the printed
17 ballots to be used at such meeting or election shall be in substantially the following form:

18 Shall the town accept the provisions of sections sixteen to sixteen I, inclusive, of chapter
19 seventy-one of the General Laws providing for the establishment of a regional school district,
20 together with the towns of , and , etc., and for construction, maintenance and operation of a
21 regional school by said district in accordance with the provisions of a proposed agreement filed
22 with the selectmen?

23 If a majority of the voters present and voting on said question in each of the several
24 towns shall vote in the affirmative, said sections sixteen to sixteen I, inclusive, shall become
25 effective, and the proposed regional school district shall be deemed to be established forthwith in
26 accordance with the terms of the agreement so adopted notwithstanding any defect or omission
27 in the creation or organization of any regional school district planning committee or regional
28 school district planning board.